

CONTRACT NO. _____

MEMORANDUM OF UNDERSTANDING
BETWEEN THE CITY OF CHEYENNE AND
LARAMIE COUNTY SCHOOL DISTRICT NUMBER ONE

1. **Parties.** This Memorandum of Understanding ("MOU") is made and entered into by and between the Laramie County School District Number One ("District"), whose address is 2810 House Avenue, Cheyenne, Wyoming 82001, and the City of Cheyenne, a municipality organized and existing under the laws of the State of Wyoming, acting through its Community Recreation & Events Department ("City"), whose address is 1317 Parsley Blvd., Cheyenne, Wyoming 82001.
2. **Purpose.** The purpose of this MOU is to provide transportation service for the Cheyenne Community Recreation & Events "REC Camp Program" by leasing school buses from the Laramie County School District Number One.
3. **Term of MOU.** This MOU shall commence on June 8, 2020, and shall remain in full force and effect through August 14, 2020.
4. **Payment.** The City agrees that on or before September 30, 2020, it will pay the District for the costs of operation of the buses for the duration of this MOU. Such costs shall include salaries, benefits, fuel, depreciation and maintenance, as set forth in Attachment A. Both parties agree that no profits or gains will be incurred pursuant to this MOU.
5. **Responsibilities of District.** The District shall furnish a maximum of six (6) buses with a minimum capacity of seventy-two (72) passengers and a maximum of six (6) drivers to operate the buses.
 - A. In case an emergency arises, bus drivers shall remain with buses at all times.
 - B. The City will be responsible for hourly wages and benefits for the drivers' personal break time, so long as said break times do not exceed legal limits.
6. **Special Provisions.**
 - A. The City shall add the designated buses to the City's existing automobile insurance policies and will cover the buses for liability and property damage.
 - B. It is expressly agreed and understood that the City's insurance policy is primary, not contributory.
 - C. The City shall name the District as an additional insured/loss payee on the City's automobile insurance policy and furnish the District with a certificate of insurance evidencing such coverage.

7. **General Provisions.**

A. **Amendments.** Either party may request changes in this MOU. Any changes, modifications, revisions or amendments to this MOU which are mutually agreed upon by and between parties to this MOU shall be incorporated by written instrument, executed and signed by all parties to this MOU.

B. **Applicable Law.** The construction, interpretation and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out this MOU and over the parties, and the venue shall be First Judicial District, Laramie County, Wyoming.

C. **Assignments.** This MOU shall be binding upon and inure to the benefit of the parties hereto and their respective heirs, successors, transferees, and permitted assignees. Neither party shall assign this MOU without the express written consent of the other.

D. **Availability of Funds.** Each payment obligation of either party is conditioned upon the availability of government funds, which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services performed by either party, either party may terminate the MOU at the end of the period for which the funds are available. Each party shall notify the other party at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to either party in the event this provision is exercised, and neither party shall be obligated or liable for any future payments due for any damages as a result of termination under this section. This provision shall not be construed to permit either party to terminate this MOU in order to acquire similar services from another party.

E. **Entirety of Agreement.** This MOU, consisting of five (5) pages, represents the entire and integrated agreement between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral.

F. **Force Majeure.** Neither party shall be liable to perform under the MOU if such failure arises out of causes beyond control and without the fault or negligence of said party. Such causes may include, but are not limited to, Acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather.

G. **Notices.** All notices arising out of or from the provisions of this MOU shall be in writing and given to the parties either by regular mail or delivery in person.

H. **Prior Approval.** This MOU shall not be binding upon either party unless this MOU has been reduced to writing before performance begins.

I. **Sovereign Immunity.** The City of Cheyenne and Laramie County School District Number One do not waive their sovereign immunity by entering this MOU, and each fully retains all immunities and defenses provided by law with respect to any action based on or occurring as a result of this MOU.

J. Indemnity. The District agrees to indemnify and hold the City of Cheyenne harmless against any and all liability or loss, and against any and all claims or actions, based on or arising out of any damage or injury to persons or property caused by or sustained in connection with (1) the District's performance of duties under this MOU, or (2) conditions caused by the negligence of District employees. Such indemnification also expressly extends to the defense of any such action or claim, and to any attorney's fees incurred by the City of Cheyenne in defense or same or in seeking enforcement of the indemnification obligations of the District.

The City agrees to indemnify and hold the District harmless against any and all liability or loss, and against any and all claims or actions, based on or arising out of any damage or injury to persons or property caused by or sustain in connection with (1) the City's performance of duties under this MOU, and (2) conditions caused by the negligence of City employees. Such indemnification also expressly extends to the defense of any such action or claim, and to any attorney's fees incurred by the District in defense of same or in seeking enforcement of the indemnification obligations of the City of Cheyenne.

K. Third Party Beneficiary Rights. The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this MOU shall not be construed so as to create such status. The rights, duties and obligations contained in this MOU shall operate only between the parties to this MOU and shall inure solely to the benefit of the parties to this MOU. The provisions of this MOU are intended only to assist the parties in determining and performing their obligations under this MOU. The parties to this MOU intend and expressly agree that only parties' signatory to this MOU shall have any legal or equitable right to seek to enforce this MOU, to seek any remedy arising out of a party's performance or failure to perform any term or condition of this MOU, or to bring an action for the breach of this MOU.

8. Signatures. In witness whereof, the parties to this MOU, through their duly authorized representatives, have executed this MOU on the days and dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this MOU as set forth herein.

The effective date of this MOU is the date of the signature last affixed to this page.

LARAMIE COUNTY SCHOOL DISTRICT NUMBER ONE

Date

Chairman, Board of Trustees

CITY OF CHEYENNE

Date

Marian J. Orr, Mayor

(SEAL)

Attest:

Kristina F. Jones, City Clerk

ATTACHMENT A

Costs to the City of Cheyenne

- FUEL:** Fuel costs will be calculated using the following formulas:
-Average cost per gallon (duration of the program)
-Average mile per gallon (6 miles) x actual miles traveled

(Note: Fuels costs may vary according to market prices)
- BUS DRIVER:** \$15.75 per hour plus 25.09% allowance for benefits in June.
\$15.75 per hour plus 25.59% allowance for benefits in July and August.
This is based on a four (4) hour per day minimum.
- ADMINISTRATIVE FEE:** 3% (dispatch, payroll processing, administrative duties)
- MILEAGE/DEPRECIATION:** \$1.61 per mile